

24CMCV00614 24CMCV00614

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-25

Motion: DEFENDANT'S MOTIONS TO COMPEL FURTHER RESPONSES TO: (1) SPECIAL INTERROGATORIES, SET ONE; AND (2) REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE DATE: August 25, 2026 TIME: 8:30 A.M.

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Case Number: 24CMCV00614 Hearing Date: August 25, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF

CALIFORNIA

FOR THE COUNTY OF LOS ANGELES –

SOUTH CENTRAL DISTRICT

JAILYN ROBATEAU; and JUSTUS HARRIS, a minor, by and through Guardian

ad Litem Jailyn Robateau,

Plaintiffs,

vs.

FOOD 4 LESS

HOLDINGS, INC.; and DOES 1 to 50, inclusive,

Defendant(s).

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CASE NO: 24CMCV00614

ORDER RE: DEFENDANT'S MOTIONS TO

COMPEL FURTHER RESPONSES TO: (1) SPECIAL INTERROGATORIES, SET ONE; AND (2) REQUEST

FOR PRODUCTION OF DOCUMENTS, SET ONE

DATE: August 25, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant Alpha Beta

Company, dba Food 4 Less (erroneously sued as “Food 4 Less Holdings, Inc.”)

Responding Party: Plaintiff Jailyn Robateau

Notice: Ok

Tentative

Ruling: (1) Defendant's

Motion to Compel Further Responses to Special Interrogatories, Set One is GRANTED

IN PART.

(2)

Defendant's Motion to Compel Further Responses to Request for Production of

Documents, Set One is GRANTED IN PART.

I.

BACKGROUND

This action arises out of molded bread allegedly

purchased and consumed by Plaintiffs Jailyn Robateau (“Plaintiff”) and Justus

Harris, a minor, by and through Guardian ad Litem Jailyn Robateau

(collectively, “Plaintiffs”) from Defendant Alpha Beta Company dba Food 4 Less

(erroneously sued as “Food 4 Less Holdings, Inc.”) (“Defendant”), at Defendants

store located at 11245 Logn Beach Blvd., Lynwood, CA 90262 (the “Store”). Plaintiffs alleged they purchased and

consumed molded bread from the Store and suffered adverse health consequences

as a result thereof.

On April 26, 2024, Plaintiffs filed

their original Complaint.

On August 1, 2024, Plaintiffs filed

their First Amended Complaint ("FAC") against Defendant and Does 1 to 50,

inclusive, alleging three causes of action for (1) General Negligence; (2)

Premises Liability; and (3) Products Liability.

On July 17, 2026, Defendant filed the

instant Motions to Compel Further Responses to: (1) Special Interrogatories,

Set One, and (2) Request for Production of Documents, Set One (collectively,

the "Discovery Motions").

On August 10, 2026, Plaintiff filed her

Responses.^[1]

As

of August 22, 2026, no oppositions or replies have been filed. Pursuant to Code Civ. Proc. § 1005(b), all

papers opposing a noticed motion must be filed with the court and served on all

other parties "at least nine court days ... before the hearing" and all reply

papers at least five court days before the hearing. (Code Civ. Proc. §

1005(b).) Accordingly, any opposition or reply papers now filed are untimely,

and the Court exercises its discretion to refuse to consider untimely filed

papers. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of

II.

ANALYSIS

A.

Legal

Standards

1.

Special Interrogatories ("SROGs")

A

party must respond to interrogatories within 30 days after service. (Code Civ.

Proc. § 2030.260(a).) The propounding party may bring motions to compel further

responses to interrogatories if it believes (1) the responses received are

evasive, or (2) incomplete, or (3) if the objections raised are meritless or

too general. (Code Civ. Proc. §§ 2030.300(a).) The propounding party must serve

notice of a motion to compel further responses to interrogatories within 45

days of the service of the verified responses, unless the parties agree in

writing to extend the deadline to a specific later date. (Id. at § 2030.300(c).)

A

motion to compel further responses to SROGs shall be accompanied by a meet and

confer declaration and a separate statement, or concise outline of the

discovery request and each response in dispute. (Code Civ. Proc. §

2030.300(b).) A respondent has the burden to justify objections in

response to a motion filed to compel further responses. (Fairmont Ins. Co.

v. Superior Court (2000) 22 Cal.4th 245, 255.)

2.

Requests for Production of Documents ("RPDs")

"A

party may demand that any other party produce ... a document that is in the

possession, custody, or control of the party on whom the demand is made." (Code

Civ. Proc. § 2031.010(b).) The demanding party may move for an order compelling

further response to the demand if the demanding party deems that (1) a

statement of compliance with the demand is incomplete, (2) a representation of

inability to comply is inadequate, incomplete, or evasive, or (3) an objection

in the response is without merit or too general. (Code Civ. Proc. §

2031.310(a).)

"The

motion shall set forth specific facts showing good cause justifying the

discovery sought by the demand," and "[t]he motion shall be accompanied by a

meet and confer declaration under Section 2016.040." (Code Civ. Proc. §

2031.310(b).) On the other hand, the respondent has the burden to justify

objections in response to a motion filed to compel further responses. (Fairmont Ins. Co. v. Superior Court, *supra*, 22 Cal.4th at p. 255.)

B.

Meet and Confer

Prior

to bringing a motion to compel further responses, the moving party must meet and confer in good faith and must attach a declaration pursuant to Code of Civil Procedure § 2016.040. “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc. § 2016.040.)

Counsel

for Defendants, Jennifer W. Naples (“Naples”), attests that Defendant served its discovery on Plaintiff on March 11, 2026. (Naples Decl. ISO RPDs Mot., ¶ 4, Exh. A; Naples Decl. ISO SROGs Mot., ¶ 4, Exh. A.)[2]

Naples attests that Plaintiff’s responses were unverified, contained baseless objections, and lacked information. (Id., ¶ 5, Exh. B.)

On May 1, 2026, Defendant served a meet and confer letter on Plaintiff.

(Id., ¶ 6, Exh. C.) Naples

attests that Plaintiff failed to respond to her meet and confer effort. (Id.,

§ 7.)

The

Court does not find that Defendant has met and conferred as required by the

Code of Civil Procedure. The Code of

Civil Procedure requires a party to meet and confer "either in person, by

telephone, or by videoconference;" a letter is insufficient. (See Code Civ.

Proc. § 2016.040.) Although the Court

has determined that Defendant's meet and confer efforts were insufficient, the

Court continues with its analysis of Defendant's motion. The parties are cautioned, however, to ensure

compliance with the requirements of the Code of Civil Procedure moving forward.

C.

Discussion

1.

Verifications

A

party responding to Requests for Production must sign the response under oath.

(Code Civ. Proc. § 2031.250(a).) Similarly,

a party responding to Special Interrogatories must sign the response under

oath. (Id. §§ 2030.210(a), 2030.250(a).)

Upon

review of Plaintiff's responses to the RPDs and SROGs, the Court finds that

Plaintiff has not verified her responses to either set of discovery. For that reason alone, further responses is required.

2.

RPDs

Defendant

moves to compel Plaintiff's further responses to its Requests for Production

numbered 1-62. As to each, Defendant argues that the responses provided are

unverified and contain baseless objections. As noted previously, Plaintiff does

not respond but rather filed copy of her response to Defendant's Requests for

Production. As the substance of

Plaintiff's responses, the Court finds as follows:

REQUESTS

FOR PRODUCTION NOS. 1-54. Each of

Plaintiff's requests for production numbered 1 through 54 seeks information

regarding nine (9) rather recently filed cases in which Plaintiff was party,

including the complaint for each case and documents evidencing the parties to

the case, pleadings, discovery and deposition transcripts. The cases for which Defendant seeks documents

are identified as follows:

1)

Case

No.: 23CMCV01574, filed October 2, 2023;

2)

Case

No.: 23CMCV01821, filed November 13, 2023;

3)

Case

No.: 24CMCV00153, filed February 5, 2024;

4)

Case

No.: 24CMCV01214, filed August 12, 2024;

5)

Case

No.: 24CMCV01302, filed August 27, 2024;

6)

Case

No.: 24CMCV01978, filed December 13, 2024;

7)

Case

No.: 25CMCV01847, filed October 31, 2025;

8)

Case

No.: 25STCV13298, filed May 7, 2025; and

9)

Case

No.: 26CMCV00194, filed January 29, 2026.

In

response to each request, Plaintiff responds “OBJECTION. This demand is irrelevant to the current case

matter in litigation.” (See Defendant’s Separate Statement (“DSS”), pp. 1-22;

see also Plaintiff’s August 10, 2026 Response.)

Defendant argues that the information sought may allow it to discover

other possible injuries Plaintiff may suffer from and that the relevant inquiry

is not whether the information sought is admissible but rather whether the

information sought will allow Defendant to evaluate the instant case, prepare

for trial or facilitate settlement.

Defendant further argues that the discovery sought is within the realm

of discoverable information and Plaintiff’s refusal to respond is contrary to

the spirit of discovery, which “demands the free exchange of information,

whether it be legal or factual.” (See DSS, p. 11:7-18.)

The

Court finds Defendant's arguments persuasive.

The scope of discovery is broad and, whether admissible or not, none of

the documents sought appear to be of the type that fall outside that broad

scope. The Court further finds that the information sought may indeed allow

Defendant to evaluate this case and assist in settlement, especially given the time

frame the cases were filed. The injuries

alleged in any of the nine other matters might provide relevant information as

to the injuries alleged in the instant matter.

Plaintiff's

objection to Request for Production numbers 1 through 54 are OVERRULED and

Plaintiff will be ordered to serve further responses to each, without further objection.

REQUEST

FOR PRODUCTION NOS. 55-57, 59-62. Defendant's Requests numbered 55-57 ask

Plaintiff to produce photos of: (1) the brand of bread at issue in this matter

(RPD No. 55); (2) the mold on the bread (RPD No. 56); and (3) her receipt

evidencing the purchase of the bread (RPD No. 57). Request No. 59 seeks all documents which

Plaintiff contends evidence Defendant's liability. Request Nos. 60 and 61 seek all documents

evidencing Plaintiff's contention both Plaintiffs' illness resulted from

ingestion of moldy bread. And Request No. 62 seeks all documents evidencing

testing done on the bread Plaintiff alleges she purchased from Defendants. To each, Plaintiff responds that she has already served defendant with all the evidence via her original complaint but agrees to “resend” the documents.[3]

Defendant

argues that each response is “completely unresponsive” and “not code compliant.” The Court finds Defendant's arguments persuasive. Although Plaintiff has agreed to produce the responsive documents, her response does not comport with Code of Civil Procedure. A statement of compliance must state that the production, inspection, copying, testing or sampling will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the responding party's possession, custody or control, and to which no objection is made, will be included in the production. (Code Civ. Proc. § 2031.220.)

Further

responses are required.

REQUEST

FOR PRODUCTION NO. 58 asks Plaintiff to produce “[a]ny and all photographs of YOUR receipts depicting the date and time YOU had purchased the same bread that allegedly caused the SUBJECT INCIDENT in the six (6) months prior to 2/7/24.”

(DSS, p. 25:6-8 (emphasis in original).) Plaintiff's response objects to the relevance of the request along with noting the impossibility to provide receipts from that long ago. (Id., p. 25:10-14.)

Defendant

seeks a further response, arguing that "information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement." While

Defendant's argument is a correct statement as to how the Court's determines relevance, outside of the general definition of relevance Defendant has not set forth any factual or legal argument as to why this information is relevant. (See Code Civ. Proc. §

2031.310(b)(A motion to compel further responses to an inspection demand must state specific facts showing good cause justifying the discovery that is sought).) Defendant has not stated any

facts showing good cause for seeking Plaintiff's receipts for purchase of the same type of bread in the six months prior to the incident.

No

further response is required.

3.

SROGs

Defendant

seeks further responses to its Special Interrogatories numbered 1 through

53. As to each, the Court rules as

follows:

SPECIAL

INTERROGATORIES NOS. 1- 45 each seek information as to the nine

previously filed cases identified in the Court's analysis of Defendant's RPDs

Motion, including information as to: (1) the nature of the claims asserted; (2)

the current status of each case; (3) names of the parties to each case; and (4)

identification of attorneys representing the parties in each case. To each,

Plaintiff responds with an objection that the information is irrelevant and not

reasonably calculated to lead to the discovery of admissible evidence. (See,

e.g., Defendant's Separate Statement filed in support of SROGs Mot.

("DSSSROGs"), p. 33:5-7; see also Plaintiff's Response, filed 8/10/26.)

For

the same reasons set forth in the Court's analysis of Defendant's RPDs Motion,

the Court does not find merit in Plaintiff's objections. Again, the Court notes that the scope of

discovery is broad and, whether admissible or not, none of the information

sought appears to be of the type that fall outside that broad scope. And the

Court again further finds that the information sought may indeed allow

Defendant to evaluate this case and assist in settlement, especially given the time frame the cases were filed; the injuries alleged in any of the nine other matters might provide relevant information or insight as to the injuries alleged in the instant matter.

Further

responses are required.

SPECIAL

INTERROGATORIES NO. 46 – 48. Special Interrogatories Nos. 46-48 ask

Plaintiff to: (1) identify the brand of bread at issue in this matter (SROG No.

46); and (2) identify any blood, stool

or vomitus samples or cultures taken or developed from Plaintiff and/or

Plaintiff Harris, the doctor who ordered any such samples or cultures and the

lab processing any such samples or cultures (SROGs 47-48). To each, Plaintiff responds “[s]ee complaint

and evidence attached.” (See, e.g., DSSSrogs, p. 35:2.)

Defendant

argues that Plaintiff’s responses are not code-compliant. Defendant is correct. A response to an interrogatory must be “as

complete and straightforward as the information reasonably available to the

responding party permits.” (Code Civ. Proc. § 2030.220(a); Collin v.

CalPortland Co. (2014) 228 Cal.App.4th 582, 590.) An answer is incomplete

if it merely refers to other documents without summarizing them, such as “see

my deposition,” “see my pleading,” or “see the financial statement.” (Deyo

v. Kilbourne (1978) 84 Cal.App.3d 771, 783-784 (“Deyo”).)

Further

responses are required.

SPECIAL

INTERROGATORY NOS. 49-53. Defendant’s

Separate Statement identifies and requests further responses to Special

Interrogatories numbers 49-53. Upon

comparison to the propounded discovery to Defendant’s Separate statement,

however, the interrogatories as set forth in Defendant’s Separate Statement do

not match up to the propounded interrogatories.

By

way of example, Defendant’s Separate Statement identifies Special Interrogatory

No. 49 as: “If on 2/7/24 YOU did not check the use-by date on the bread before

purchase, why didn’t YOU check it?” (DSSSRogs, p. 35:14-15) and seeks a further

response. However, Special Interrogatory

No. 49 in the interrogatories propounded to Plaintiff, as attached to the

Naples Declaration, asks “Please IDENTIFY any blood, stool, or vomitus samples

or cultures taken or developed from YOU concerning the illness described in

your complaint by type of culture or testing, result, doctor who ordered it

(name, address and telephone number) and lab that analyzed it (named, address and telephone number)." (Naples Decl., Exh. A, p. 7:26-8:2.) The same discrepancy occurs throughout Special Interrogatories Nos. 49-53.

The

Court declines to search through Defendant's propounded interrogatories and Plaintiffs' responses and compare both to Plaintiff's Separate Statement to match up the interrogatories for which a response is requested with their correct numbering and with the correct response.

Defendant's

Motion to Compel Further Responses as to Special Interrogatories numbered 49-53 is DENIED.

4.

Sanctions

As to

each Discovery Motion, Defendant requests the Court impose monetary sanctions in the amount of \$1,530.00 against Plaintiff, consisting of: 3 hours preparing each motion and separate statement, an anticipated 2 hours to prepare a reply, 1 hour to prepare for the hearings, and 1 hour to attend the hearing on these motions, all at a rate of \$245 per hour. (See Naples Decl. ISO RPDs Mot., ¶ 8.) Defendant further requests a \$60

filing fee for each motion. (Id.)

When

a party successfully makes or opposes a motion to compel further response to special interrogatories, “the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against” the unsuccessful party “unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. §§ 2030.300(d).) And pursuant to the Rule of Court 3.1348, the Court has discretion to award sanctions under the Discovery Act in favor of a successful moving party, even if no opposition to the motion was filed. (See Cal. R. Ct., Rule 3.1348(a).)

While

the Court finds that sanctions are warranted, the Court also finds that Defendant’s requested sanctions are excessive given: (1) the duplicative and relatively simple nature of these two Discovery Motions; (2) the fact that Defendant has not filed a reply to either motion; and (3) the fact that both motions will be heard in conjunction with the other (making a total of 4 hours of time preparing for and attending the hearings excessive). The Court finds counsel’s hourly rate to be reasonable for an attorney in the Greater Los Angeles Area and further finds sanctions are warranted in the total reduced amount of \$ 855.00, representing

1.5 hours at \$245/hr per motion with an additional \$60 per motion for filing

fees.

III.

CONCLUSION

Defendant's

Motion to Compel Further Responses to Requests for Production, Set One is

GRANTED IN PART. Plaintiff is ordered to

serve further responses, code-compliant and without further objection, to RPDs

number 1-57 and 59-62.

Defendant's

Motion to Compel Further Responses to Special Interrogatories, Set One is

GRANTED IN PART. Plaintiff is ordered to serve further responses,

code-compliant and without further objection, to Special Interrogatories

numbers 1-48.

Plaintiff's

further responses are ordered to be served on Defendant no later than September

25, 2026. And the awarded sanctions are

ordered to be paid to Defense counsel no later than September 25, 2026.

[1] Plaintiff did not file oppositions

to Defendant's discovery motions.

Instead, Plaintiff filed her: (1) Response to Defendant's Request for

Production, Set One; and (2) Response to Defendant's Special Interrogatories,

Set One.

[2] Defense counsel's declarations in

support of the RPDs Motion and the SROGs motion are nearly identical, save for

the identification of the discovery at issue.

Accordingly, the Court's further citations in Section II.B and later in

Section II.C.4 are made to counsel's declarations filed in support of the RPDs

Motion with the understanding that the same information is within the

declaration filed in support of the SROGs Motion.

[3] See DSS, p. 22:26-28, p. 23:

22-23, p. 24:15-17, p. 26:11-14, p. 27:7-10, p. 28:3-6, p. 28:26-29:1.